

Smt. Habibunissa v. State of Uttar Pradesh & Ors.

High Court of Judicature at Allahabad · Division Bench · 26 February 2026 · WRIT - C No. 8187 of 2026 · **Disposed; petitioner to object to notice; authority to pass final assessment.**

HEADNOTE

A writ to quash a pre-assessment electricity-dues notice is not decided on merits. The consumer is directed to file objection under the U.P. Electricity Supply Code, 2005; the authority shall consider it and pass the final assessment. Petition disposed.

FACTUAL SUMMARY

Smt. Habibunissa petitioned under Article 226 to quash a notice dated 8 May 2024 directing her to file a reply or objection to electricity dues sought to be recovered. Counsel for the distribution licensee (respondents 2 and 3) raised maintainability, submitting that she could still object under the U.P. Electricity Supply Code, 2005, that the authority would deal with any objection before passing a final assessment, and that no final assessment order had yet been made.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

objection before final assessment

HOLDING

Where only a notice calling for reply or objection to electricity dues has issued and no final assessment order has been passed, the writ is not decided on merits. The petitioner is directed to file objection to the 8 May 2024 notice under the U.P. Electricity Supply Code, 2005 within four weeks; if she does, the authority shall deal with the objection and pass the final assessment order within a further month. ¶ 3-5

FLAG order cites the Supply Code 2005 without a clause number; context is objection before final assessment

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ to quash a pre-assessment electricity-dues notice is not decided on merits. The consumer is directed to file objection under the U.P. Electricity Supply Code, 2005; the authority shall consider it and pass the final assessment. Petition disposed. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED —

NOT DECIDED —